



U.S. Department
of Transportation

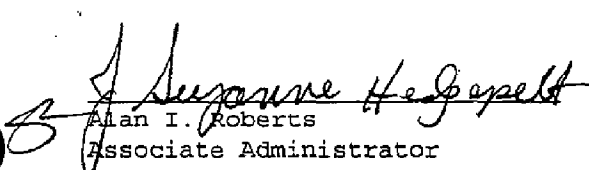
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 5038 (PTE)
SIXTH REVISION May 29, 1986

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 5038. The expiration date of the exemption for the party(ies) is August 31, 1995.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 30 1994

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

BOC Gases
Murray Hill, NJ

August 19, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 5038
(SIXTH REVISION)

1. The Synthatron Corporation, Parsippany, New Jersey, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of flammable liquids, corrosive and ORM-A materials for shipment in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of dimethyldichlorosilane, trichlorosilane, other specifically identified flammable liquids, silicon tetrachloride, carbon tetrachloride and chloroform in non-DOT Specification cylinders, and provides no relief from any regulation other than as specifically stated here. Each of the following is hereby granted the status of a party to this exemption:

Airco, Inc., Murray Hill, N.J. - PTE-1.

2. BASIS. This exemption is based on Synthatron Corporation's application dated February 26, 1986, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and 107.105 and the public proceeding thereon:

Airco, Inc's application dated February 18, 1986.

3. HAZARDOUS MATERIALS (Descriptor and class).

a. Flammable liquids: dimethyldichlorosilane, trichlorosilane acetone, butyl acetate, ethyl acetate, ethylene dichloride, hexamethyldisilazane, methyl alcohol, methyl ethyl ketone, n-methyl-2-Pyrrolidone, isopropyl alcohol, toluene and xylene; and other flammable liquids specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Regulation (OHMR) prior to the first shipment.

b. Corrosive materials: Silicon tetrachloride.

c. ORM-A materials: Carbon tetrachloride and chloroform.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic commodity description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.119, 173.135 (a)(6), 173.136 (a)(5), 173.247 (a)(1), 173.346, 173.620, 173.630 and 175.3.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo-only aircraft.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT Specification type 304 stainless steel cylinder having a design pressure of not less than 75 psig, and a nominal water capacity not exceeding 5 gallons.

8. SPECIAL PROVISIONS. Each cylinder must:
- a. Be thoroughly cleaned and inspected prior to filling.
 - b. Be blanketed with an inert nonflammable gas to not more than 5 psig during shipment.
 - c. Be retested and have new valves installed prior to the first shipment of dimethyldichlorosilane and trichlorosilane.
 - d. A copy of this exemption must be carried aboard each vessel and aircraft used to transport packages covered by this exemption.
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.
10. EXPIRATION DATE. April 1, 1988.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

MAY 29 1986

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA, USCG, FAA